[Public Land Order 4430]

[Riverside 26]

CALIFORNIA

Elimination of Lands From Havasu Lake National Wildlife Refuge

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 8647 of January 22, 1941, establishing the Havasu Lake National Wildlife Refuge, is hereby revoked so far as it affects the following described lands:

SAN BERNARDINO MERIDIAN

T. 7 N., R. 24 E.,
Sec. 5, SE¼SW¼.

The tract described contains 40 acres of acquired lands of the Bureau of Reclamation.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6577; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4431]

[Montana 6496]

MONTANA

Partial Revocation of Executive Order No. 1032

By virtue of the authority vested in the President and pursuant to Executive Order 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 1032 of February 25, 1909, so far as it withdrew the following described lands as the Willow Creek Reservation, the name of which has been changed to Willow Creek National Wildlife Refuge, is hereby revoked:

PRINCIPAL MERIDIAN

T. 21 N., R. 6 W.,
Sec. 18, lot 4;
Sec. 19, lots 1 to 4, inclusive, SW¼NE¼, SE¼NW¼, E½SW¼, and W½SE¼;
Sec. 30, lots 1 and 2, NW¼NE¼, NE¼NW¼, and SE¼NW¼.
T. 21 N., R. 7 W.,
Sec. 13, S½S½;
Sec. 14, NW¼NE¼, S½NE¼, E½NW¼, E½SW¼, and SE¼;
Sec. 23, NE¼, NE¼NW¼, S½NW¼, N½SW¼, SE¼SW¼, and SE¼;
Sec. 24;
Sec. 25, N½ and NW¼SW¼;
Sec. 26, NE¼, N½SE¼, S½NW¼, N½SW¼.

The areas described aggregate approximately 3,118.85 acres in Lewis and Clark County. The lands remain withdrawn for reclamation purposes.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6578; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4432]

[New Mexico 5244]

NEW MEXICO

Partial Revocation of Public Water Reserve

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. The Executive Order of April 17, 1926, creating Public Water Reserve No. 107 is hereby revoked so far as it affects the following described land:

NEW MEXICO PRINCIPAL MERIDIAN

T. 11 S., R. 21 E.,
Sec. 12, SW¼NE¼.

The area described contains 40 acres in Chaves County.

The land is located 20 miles west of Roswell, N. Mex. The terrain is moderately rolling to rolling in nature; the soil is a thin rocky, sandy loam. Vegetation is comprised of a fair turf of native grasses with some cholla, snakeweed and scattered mesquite.

2. At 10 a.m. on July 4, 1968, the land shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on July 4, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The land will be open to location for nonmetalliferous minerals at 10 a.m. on July 4, 1968. It has been open to applications and offers under the mineral leasing laws and to location under the U.S. mining laws for metalliferous minerals.

The State of New Mexico has waived the preference right of application granted to certain states by R.S. 2276, as amended (43 U.S.C. 852).

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6579; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4433]

[ES-3546]

MICHIGAN

Transfer of Jurisdiction Over Oil and Gas Deposits

Whereas, the hereinafter described lands to which title has been acquired by the United States, and which comprise the Army Reserve Center Site at Marine City, Mich., are reported to be subject to drainage of their oil and gas deposits by wells on adjacent lands; and

Whereas, it is necessary in the public interest that such protective action be taken as will prevent loss to the United States by reason of such drainage or threatened drainage; and

Whereas, in order to facilitate such action, it is considered advisable that jurisdiction over the oil and gas deposits in such acquired lands be transferred from the Department of the Army to the Department of the Interior, in which transfer the Secretary of the Army concurs.

Now, therefore, by virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. The jurisdiction over the oil and gas deposits owned by the United States in the following described lands is hereby transferred from the Department of the Army to the Department of the Interior:

MICHIGAN MERIDIAN

T. 3 N., R. 16 E.,
Sec. 16, in the W½NE¼NW¼, a tract of land containing approximately 18.89 acres, and more particularly described as follows:

Beginning at a point on the north line of sec. 16, being S. 89°37'48" E., 1,344.35 feet from the northwest corner of sec. 16, thence S. 89°37'48" E., along the north line of sec. 16, 620.02 feet to a point, said point being N. 89°37'48" W., 724.33 feet from the north quarter corner of sec. 16, thence S. 0°02'14" E., 1,321.75 feet to a point; thence S. 89°49'-22" W., 1,327.67 feet to the point of beginning.

2. The Secretary of the Interior shall take such action as may be necessary to protect the United States from loss on account of the drainage or threatened drainage of oil and gas from such lands.

3. The jurisdiction of the Department of the Interior over such deposits shall be limited only by the primary jurisdiction of the Department of the Army over the lands for military purposes.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6580; Filed, June 4, 1968; 8:46 a.m.]

Title 49—TRANSPORTATION

Subtitle A—Office of the Secretary of Transportation

[OST Docket No. 12; Amdt. 91-1]

PART 91—AIRCRAFT LOAN GUARANTEE PROGRAM

Revocation of Part

Effective June 13, 1968, the authority of the Assistant Secretary for Policy Development to carry out the functions, powers, and duties of the Secretary of Transportation with respect to the Act of September 7, 1957, as amended (49 U.S.C. 1324 (note)) and section 6(a)(3)(A) of the Department of Transportation Act, 49 U.S.C. 1655(a)(3)(A) relating to guarantees of private loans for the

purchase of aircraft, was revoked and the authority to carry out those functions, powers, and duties was delegated to the Administrator of the Federal Aviation Administration (49 CFR 1.4(b)(4)). For this reason, Part 91 of the Regulations of the Office of the Secretary "Aircraft Loan Guarantee Program" is no longer necessary and is being revoked and replaced by an appropriate regulation issued by the Administrator, Federal Aviation Administration.

Since this amendment relates to Departmental management, procedure, and practices, notice and public procedure thereon is unnecessary, and it may be made effective in less than 30 days after publication in the FEDERAL REGISTER.

In consideration of the foregoing, Part 91 of Title 49 of the Code of Federal Regulations is revoked, effective June 13, 1968.

(Sec. 9 of the Department of Transportation Act (49 U.S.C. 1657))

Issued in Washington, D.C., on May 15, 1968.

ALAN S. BOYD,
Secretary of Transportation.

[F.R. Doc. 68-6598; Filed, June 4, 1968; 8:47 a.m.]